

- (4) To comply with the duty imposed under section 99A(2), a person must:
 - have in operation a traffic management plan;
 - give appropriate warnings to road users;
 - engage appropriately trained and qualified persons to carry out the works or manage the non-road activities or direct traffic; and
 - give appropriate directions to the persons engaged in carrying out the works.
- (5) A traffic management plan must:
 - comply with the prescribed requirements (which are set out in the Road Safety (Traffic Management) Regulations 2019); and
 - be prepared in accordance with any requirements imposed on the coordinating road authority under the **Road Management Act 2004**.

12. Safety duties in relation to works on or near rail infrastructure

- (1) Various safety duties apply to responsible road authorities, infrastructure managers, works managers, works contractors and rail transport operators under Division 4A of Part 4 of the **Road Management Act 2004**. Offences also apply.
- (2) A person must, as far as is reasonably practicable, exercise a power or perform a duty safely. This means the person is required:
 - to eliminate risks to safety so far as is reasonably practicable; and
 - if it is not reasonably practicable to eliminate risks to safety, to reduce those risks so far as it reasonably practicable.
- (3) There are a number of matters relevant in determining what is reasonably practicable:
 - the likelihood of the hazard or risk concerned eventuating;
 - the degree of harm that would result if the hazard or risk eventuated;
 - what the person concerned knows, or ought reasonably to know, about the hazard or risk and any ways of eliminating or reducing the hazard or risk;
 - the availability and suitability of ways to eliminate or reduce the hazard or risk; and
 - the cost of eliminating or reducing the hazard or risk.
- (4) Notification requirements are also imposed on the responsible road authority, infrastructure manager, works manager, works contractor and rail transport operator depending on the circumstances. Offences also apply.

13. Approval to erect traffic control devices

- (1) In addition to any approval required to undertake works or non-road activities, a person may also be required to obtain approval from the relevant road authority to erect a traffic control device in accordance with the Road Safety (Traffic Management) Regulations 2019.
- (2) Approval is required because there is a general prohibition on erecting traffic control devices and to do so without approval is an offence under regulation 7 of the Road Safety (Traffic Management) Regulations 2019.
- (3) Traffic control devices are classified as either major traffic control devices or minor traffic control devices. Major traffic control devices are listed in Schedule 1 to the Road Safety (Traffic Management) Regulations 2019, e.g. speed-limit signs and traffic signals. A traffic control device that is not a scheduled major traffic control device is a minor traffic control device, e.g. a road work ahead sign and other yellow warning signs commonly used for temporary traffic management.
- (4) For freeways and arterial roads, approval to erect traffic control devices must be sought through a Memorandum of Authorisation with the Head, Transport for Victoria (which is the coordinating road authority).